

CHAPTER 65.

An Act to continue in office the Welsh Commissioners appointed under the Welsh Church Act, 1914, to postpone the date of disestablishment, and to make further provision with respect to the temporalities of, and marriages in, the Church in Wales.

[19th August 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) His Majesty in Council may, from time to time, on the application of the Welsh Commissioners appointed under the Welsh Church Act, 1914, suspend the dissolution of the said Commissioners, and, subject to revision by the Treasury of the salaries of the said Commissioners and the remuneration and number of their officers, continue their powers for such time as His Majesty thinks fit.

Continuation
of Welsh Com-
missioners.
4 & 5 Geo. 5.
c. 91.

(2) Notwithstanding anything in the Welsh Church Act, 1914, the expenses of carrying that Act into execution, including the salaries and remuneration of the Commissioners and their staff, shall be apportioned between the property to be transferred to the University of Wales and the several county councils in proportion to the value of the property to be so transferred to them respectively.

2. The date of disestablishment of the Church in Wales shall, notwithstanding anything in the Welsh Church Act, 1914, or the Suspensory Act, 1914, or any order made thereunder, be, for the purposes of this Act and of the first-mentioned Act, the thirty-first day of March, nineteen hundred and twenty.

Date of dis-
establishment.
4 & 5 Geo. 5.
c. 88.

3.—(1) Section eighteen of the Welsh Church Act, 1914, shall have effect as if the representative body had signified by notice in writing to the Welsh Commissioners that they have adopted the scheme of commutation set forth in that Act ; and in paragraph (b) of the said section the expression " the existing interests of holders of ecclesiastical offices in the Church in Wales " means and shall be deemed always to have meant existing interests of persons who, at the time of the passing of the Welsh Church Act, 1914, were holders of ecclesiastical offices in the Church in Wales.

Provisions
relating to
commutation.

(2) There shall be paid out of moneys provided by Parliament to the Welsh Commissioners a sum of one million pounds to be applied by them towards the payment of the sum due to the representative body under the said scheme of commutation.

(3) The annual income derived from property mentioned in paragraph (4) of the Fourth Schedule to the Welsh Church

8 & 9 Geo. 5.
c 54.

Act, 1914, shall, as respects tithe rentcharge be taken to be the amount of the tithe rentcharge according to the septennial average computed at the date of disestablishment as if the Tithe Act, 1918, had not passed, after making the deductions specified in the said paragraph.

(4) The annual income derived from property mentioned in paragraph (2) of the Fifth Schedule to the Welsh Church Act, 1914, shall as respects tithe rentcharge be the amount of tithe rentcharge computed in accordance with the Tithe Act, 1918, after making the deductions specified in the said paragraph.

(5) If the Welsh Commissioners shall not have paid to the representative body, within six months after the date of commutation, the aggregate value of the existing interests of holders of ecclesiastical offices in the Church of Wales, as ascertained in the manner provided by the Fourth Schedule of the Welsh Church Act, 1914, and this Act, they shall pay interest on any amount unpaid at the rate of five and a half per centum per annum until such payment.

(6) Where, on the first day of January, nineteen hundred and thirteen, any ecclesiastical office in the Church in Wales, was vacant, the person appointed to hold that office next after that date shall, for the purposes of paragraph (1) of the Fourth Schedule to the Welsh Church Act, 1914, be treated as if he had been the holder of that office on that date.

Further provisions as to
Welsh
ecclesiastical
property.

4.—(1) The Welsh Commissioners may postpone the transfer under the Welsh Church Act, 1914, of any property vested in them to any person or body of persons, whether corporate or unincorporate, other than the representative body, and such person or body of persons shall not be bound to accept the transfer of any such property until the Secretary of State so directs; and so long as any tithe rentcharge which was previously attached to a benefice remains vested in the Welsh Commissioners, the Welsh Commissioners shall be deemed to be the owners of a tithe rentcharge attached to a benefice for the purposes of the Tithe Rentcharge (Rates) Act, 1899.

62 & 63 Vict.
c. 17.

(2) If the Welsh Commissioners so agree with the representative body, it shall be lawful for the Welsh Commissioners to buy and for the representative body to sell to them any of the tithe rentcharge transferred to the representative body under the Welsh Church Act, 1914, at a price to be ascertained by the same method as that prescribed by the Tithe Act, 1918, for the payment of compensation for the redemption of tithe rentcharge; and the Welsh Commissioners may determine out of what part of the funds vested in them the purchase money payable for any such tithe rentcharge is to be paid and the tithe rentcharge when purchased shall be dealt with by the Welsh Commissioners in like manner as if it had been derived from the same source as the purchase money:

Provided that, if the tithe rentcharge at the time of sale is subject to any existing interest, it shall be discharged from that interest, and the representative body shall be liable to pay to the person entitled to the existing interest, so long as that interest would have continued, an annuity equal to the annual value of his interest therein ascertained in manner provided by the Fifth Schedule to the Welsh Church Act, 1914, and this Act.

(3) There shall be included in the property which the Welsh Commissioners are required by subsection (1) of section eight of the Welsh Church Act, 1914, to transfer to the representative body any tithe rentcharge derived from sources other than endowments of any ecclesiastical office or cathedral corporation in the Church in Wales, and not being Welsh ecclesiastical property, which has been appropriated since the year sixteen hundred and sixty-two to benefices in Wales and Monmouthshire.

5.—(1) It shall be lawful for the Ecclesiastical Commissioners by agreement with the representative body, instead of charging their common fund with the payment of the perpetual annuity mentioned in proviso (c) to section six of the Welsh Church Act, 1914, to pay to the representative body out of any capital money belonging to them (including money invested under section six of the New Parishes Act, 1843), not being Welsh Ecclesiastical property, a capital sum not exceeding such amount as may in the opinion of the Ecclesiastical Commissioners be the capitalised value of such annuity, and any charge upon the said common fund made in respect of such annuity before the date of disestablishment shall, upon payment to the representative body of a capital sum in lieu thereof, cease to have effect.

Additional
powers of
Ecclesiastical
Commissioners.

6 & 7 Vict.
c. 37.

(2) Notwithstanding the limitation imposed by proviso (d) of section six of the Welsh Church Act, 1914, upon the sum which the Ecclesiastical Commissioners may pay in any year to the representative body, it shall be lawful for the Ecclesiastical Commissioners with the consent of the representative body to pay to that body a sum in excess of the said limitation, upon condition that no further payment shall be made by the Ecclesiastical Commissioners under the powers granted to them by that proviso.

(3) Parts I. and III. of the Schedule to the Welsh Church Act, 1914 (which define the property which may be transferred by the Ecclesiastical Commissioners to the representative body), shall have effect as if the words "date of disestablishment" were therein substituted for the words "passing of this Act."

6. Nothing in this Act or in the Welsh Church Act, 1914, shall affect—

Saving pro-
visions as to
marriages in
churches.

(a) the law with respect to marriages in Wales or Monmouthshire; or

(b) the right of bishops of the Church in Wales to license churches for the solemnisation of marriages or to grant licences to marry ;

and section twenty-three of the Welsh Church Act, 1914, is hereby repealed.

Provisions as
to charities.

7.—(1) The Charitable Trusts Acts, 1853 to 1914, shall not apply to the representative body or to any property vested in or administered by it except to such property and for such time as the Charity Commissioners may by order determine upon the application of the representative body.

(2) Where by any charter, deed, or other document any association, institution, or society, whether corporate or unincorporate, is empowered, or is under a duty, to make any grant or payment to any persons or body of persons, whether corporate or unincorporate, in Wales and Monmouthshire, such power or duty shall not be affected by reason of any parish of the Church in Wales ceasing to be a part of the province of Canterbury or of York, notwithstanding anything contained in any such charter, deed, or document.

Saving for
divided
parishes.

8. Where an ecclesiastical parish which before the year eighteen hundred and fifty was situate partly in Wales or Monmouthshire and partly in England has since that year been divided into two ecclesiastical parishes, one of which is situate wholly in Wales or Monmouthshire and one wholly in England, and both those parishes are situated in an English diocese, then subsections (1) and (3) of section nine of the Welsh Church Act, 1914 (which relates to border parishes), shall apply to the ecclesiastical parish so situate wholly in Wales or Monmouthshire in like manner as if part thereof were situate in England.

Short title and
construction.

9. This Act may be cited as the Welsh Church (Temporalities) Act, 1919, and shall be construed as one with the Welsh Church Act, 1914, and that Act and this Act may be cited together as the Welsh Church Acts, 1914 and 1919.

CHAPTER 66.

An Act to check Profiteering.

[19th August 1919.]

WHEREAS it appears that the prices of articles are, to the detriment of the people, being enhanced in some cases by the charging of prices yielding an unreasonable profit to the persons engaged in the production, handling, or distribution thereof :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and